SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 21, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video.** Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: https://santaclara.courts.ca.gov/online-services/remote-hearings. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court. (**Local Rule 5**).** If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to https://reservations.scscourt.org or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	21CV392006	Cuong Quach vs Maxreal Cupertino et al	**Demurrer** Parties to appear. Given that plaintiff's counsel Thomas Spielbauer cannot represent the plaintiff at this time, the demurrer is continued. Parties to appear to discuss scheduling. On October 28, 2025, defendants Agent Realty and Finance, Fuzhou Wu, Yan Zhang, Jian Qiang Huang, and Kok Jin Yeo filed this demurrer to Plaintiff Cuong Quach's Third Amended Complaint ("TAC"). The motion is accompanied by a proof of electronic service upon Plaintiff's counsel on October 28, 2025. Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

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LAW AND MOTION TENTATIVE RULINGS

LINE 2	23CV416519	Linda Lisner vs City of San Jose et al	**Motion for Order for Admissions Deemed Admitted & Sanctions** Scroll down to Line 2 for Tentative Ruling.
LINE 3	23CV421976	Community Education Foundation vs George Eshoo et al	**Motion to Tax Cost** OFF CALENDAR. On December 10, 2025, Defendants' 32 & Bruce Partners, LLC and George Eshoo ("Defendants") filed a joint notice of a motion to strike or tax plaintiff Community Education Foundation ("CEF")'s amended memorandum of prejudgment costs; and request for attorney's fees and sanctions. Defendants did not file a memorandum of points and authorities in support of the motion, Declaration in support, or any other supporting papers. Code of Civil Procedure section 1005 requires that the moving papers must be served at least 16 court days prior to the hearing date. California Rule of Court, Rule 3.1112 requires that a motion be accompanied by a memorandum of points and authorities, support Declaration and exhibits, and proof of service. Plaintiff opposes the motion on the grounds that the defendants have failed to serve supporting papers. On July 17, 2026, moving party filed a motion to withdraw the motion. Due to the number of procedural violations, the defendants motion is DENIED without prejudice.
LINE 4	24CV442732	Rolan Estrada vs Ron Estrada	**Motion to Appoint Appraiser to Determine Fair Market Value** Scroll down to Line 4 for Tentative Ruling.
LINE 5	24CV448023	Itria Ventures LLC et al vs Shivendra Basnet et al	**Motion for Attorney's Fees and Costs** Scroll down to Line 5 for Tentative Ruling.
LINE 6	24CV451194	Anson Vasquez vs Tyler Stayskal et al	**Motion to Compel Responses to Form Interrogatories and Request for Production of Documents, Set One; and Sanctions** Scroll down to Line 6 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

LINE 7	25CV474331	Amy Hunter vs San Jose Motorsport, Inc. et al.	**Petition to Compel Arbitration** Scroll down to Line 7 for Tentative Ruling.
LINE 8	25CV482719	David Dixon, Jr., Ind. And as SII to the Estate of David Dixon, Sr. et al vs Jason Murray et al.	**Petition to Compel Arbitration** Scroll down to Line 8 for Tentative Ruling.
LINE 9	26CV489684	Baoxin Ling vs Jieqian Xing et al	**Motion to Strike** Scroll down to Line 9 for Tentative Ruling.

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9:01 A.M.			
LINE 1	21CV390552	Rad Law Group, APLC et al vs William Curry	**Hearing: Order of Examination** Parties to appear.
LINE 2	24CV440130	Deluxe Windows and Clean Builders Company vs Gonzalez Family Realty LLC et al	**Motion to Withdraw as Attorney** Parties to appear.
LINE 3	25CV478927	Waichiro Miki vs Yue Zhao et al	**Motion to Withdraw as Attorney** OFF CALENDAR. Moving party withdraw the motion and plaintiff filed a notice of settlement.
LINE 4	26CV496227	Lorraine Aguilar vs Jacob Garcia	**Hearing: Order of Examination** Parties to appear.

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9:00 A.M.

Calendar Line # 2
Case Name Linda Lisner vs City of San Jose et al.
Case No. 23CV416519

Motion for Order for Admissions Deemed Admitted and Sanctions

I. BACKGROUND

This case stems from a personal injury/premises liability case that was filed on May 18, 2023. Before the Court is Plaintiff Linda Lisner's ("Lisner") Motion for Order for Admissions to be Deemed Admitted and monetary sanctions against Defendant Johnstone Moyer Inc's ("JMI") that was filed on October 30, 2025. The motion was accompanied by a proof of service indicating electronic mail service on that same day.

The Court has carefully reviewed Plaintiff's moving papers including, notice of motion, memorandum of points and authorities, Declaration of Jerome Belloti and attached Exhibit A, and proof of service (totaling 24 pages); Defendant JMI's Opposition (totaling 20 pages); Declaration of Nicholas K. Wong in support of defendant's opposition and Exhibits 1-11 (totaling 74 pages); proofs of service; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

The Court notes procedural violation by the defendant. Defendant filed opposition papers on July 10, 2026. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by July 8, 2026. The papers were two days late.

California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. However, the Defendant JMI and defense counsel is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers.

B. REQUEST FOR ADMISSIONS

Pursuant to California Code of Civil Procedure sections 2033.280:

> "If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:
>
> (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280).

III. ANALYSIS

On August 9, 2025, Plaintiff served JMI with Request for Admissions ("RFA"), Set One, that contained a total of 56 RFA via electronic mail service. (Declaration of Bellotti, at p.7 and Exhibit A). Per Plaintiff, responses were due on September10, 2025. (*Id.*). Plaintiff avers that no extensions by stipulation of the parties or court order was extended. (*Id.*). Plaintiff did not receive any responses on September10, 2025 or at the time of filing this motion on October 30, 2025. (*Id.*).

Defendant JMI opposes the motion and asserts that responses to RFA were served on February 13, 2026 and verified responses were served on March 19, 2026. (Declaration of Wong; Exhibit 9). JMI thereby avers that there has been substantial compliance prior to this hearing date. (Opposition, at p. 4). JMI also points to the fact that verified responses have been submitted, the motion is dispositive, and that the plaintiff has not filed a motion to compel further responses. (*Id.*). JMI asserts that it was added late and served with the Complaint on February 26, 2025, nearly 21 months after the Complaint was filed on May 18, 2023. Because JMI's insurance carrier was investigating the claim, JMI did not Answer until August 8, 2025. (Declaration of Wong, p. 2). A day later, Plaintiff served discovery via electronic service on JMI. (*Id.*). JMI asserts that at that juncture, parties had not agreed to electronic service. (*Id.;* Exhibit 1). On October 5, 2025, plaintiff's counsel emailed JMI that discovery responses were overdue and that objections were waived, and requested an estimated date for responses. (*Id.,* at p. 3*;* Exhibit 2). Defense counsel Wong was not assigned to the matter until October 6, 2025, which nearly one month after discovery responses were due. (*Id.*).

Parties met-and-conferred on November 6, 2026 and discussed having responses due on December 22, 2025. Defense asserts that Mr. Bellotti stated he would consider withdrawing the motion at that time. (*Id.,* at p. 4). Thereafter, JMI asserts to receiving material from the plaintiff on November 18, 2025 that required preparation to responses. (*Id.*). On February 13, 2026, JMI served responses to discovery nothing "verifications to follow." (*Id.*). On February 20, 2026, Plaintiff sent a letter identifying deficiencies in initial discovery responses. However, JMI notes that none of the deficiencies were to defendant's RFA. (*Id.;* Exhibit 6). On March 2-3, 2026, parties met-and-conferred about the location where the alleged incident occurred. Given the discrepancy of the location of the incident, defense counsel Ms. Cappelluti as plaintiff's counsel to re-issue the RFA with the correct location, which was rejected. (*Id.,* at p. 5). Ms. Cappelluti sent a letter on March 5, 2026, memorializing the plaintiff's counsel refusal to update RFAs and defense confirmed it had substantially complied with produced verified responses. (*Id.*). On March 19, 2026, JMI served verified responses to RFA defining "the premises" as the location clarified by plaintiff's counsel. (*Id.;* Exhibit 9-10).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2033.280(c), the Court *shall* impose monetary sanctions for failure to timely respond to requests for admission unless the party acted with substantial justification, or the circumstances render imposition of sanctions unjust. The Court must impose a monetary sanction on the party or attorney whose failure to serve timely Requests for Admission responses necessitated the motion.

Plaintiff Lisner seeks $1,260.00 in sanctions based on a three hours of work to prepare and file the submit motion, one hour of anticipated time to appear for the hearing at the hourly rate of $300.00, as well as $60.00 in cost. (Declaration of Bellotti, at p. 8).

Defendant JMI opposes the request for sanctions on the grounds that it has provided verified responses on March 19, 2026. JMI also opposes sanctions against Mr. Wong—and points out that plaintiff's counsel incorrectly identifies defense counsel as Mr. Wang—stating that he was not assigned to work on the matter until October 6, 2025, which was weeks after the initial responses were due. (Opposition, at p. 13-14). Further, JMI states that discovery was served via electronic service before parties had consented to electronic service in violation of Code of Civil Procedure section 1010.6 (b)(3). JMI also asserts that it has complied with discovery and served verified responses prior to the hearing date. JMI asked plaintiff's counsel on three separate dates to withdraw the motion and cited *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776. (Declaration of Wong, at p. 5). Defendant further avers that the plaintiff did not file a motion to compel further responses.

Separately, JMI seeks sanctions against the plaintiff under Code of Civil Procedure section 128.5 for failing to withdraw this motion after receiving verified responses and rendering the motion moot. (Opposition, at p. 17). Defense counsel requested that the plaintiff withdraw its motion on March 5, July 9, and July 10, 2026. (*Id.*). Per JMI, plaintiff's counsel conditioned any withdrawal on provisions of unrelated defense medical examinations and depositions, thus leveraging other discovery in bad faith or tactics. Thus, JMI seeks $4,025.00 against the plaintiff for attorney's fees based on nine hours of work researching, reviewing, and opposing the motion, and 2 hours of anticipatory time in reviewing a reply brief –no reply brief was submitted—and 0.5 hours for attending the court hearing for a total of 11.5 hours at the hourly rate of $350.00.

V. <u>CONCLUSION</u>

Based on the foregoing, and the defendant JMI serving verified responses on March 19, 2026 prior to the hearing, the motion to deem admissions admitted is rendered MOOT. Thus, the plaintiff's request for sanctions is DENIED.

Based on the procedural history and timeline of the motion and opposition, the defendant's motion for sanctions is DENIED. Both parties are admonished that discovery is not to be misused and any future motions to compel and request for sanctions will be scrutinized for monetary and evidentiary sanctions. The Court will prepare the formal Order.

Calendar Line # 4
Case Name Rolan Estrada vs Ron Estrada
Case No. 24CV442732

Motion to Appoint Appraiser to Determine Fair Market Value

I. <u>BACKGROUND</u>

This case involves a Complaint filed on July 9, 2024, under the Partition of Real Property Act ("PRPA") for partition of real property, an 80-acre of land located in Morgan Hill, Santa Clara County, California, 95037, APN: 742-26-002 ("Subject Property"). (Complaint and Motion at p. 2). The Subject Property is held by joint tenants, Plaintiff Rolan Estrada and Defendant Ron Estrada. (Complaint). Per the defendant, the plaintiff owns 25% interest and the defendant owns 75% interest in the Subject Property. (*Id.*; Motion at p.5; Declaration of Gregory Brown). Defendant asserts that there is no agreement in a record binding all the contents which govern the partition of the property. (*Id.*).

Defendant holds an unsatisfied money judgment against the plaintiff in the total amount of $113,462.98 as of October 16, 2025 (Motion, at p. 2). The judgment was levied against the Subject Property, which the defendant purchased for the preservation of title to the Property. (*Id.*). Defendant asserts that he is the sole contributor for all expenses and maintenance of the Subject Property, including, but not limited to taxes paid every year since 1987, repairs, and the maintenance of the road that runs through the property. (*Id.,* at p. 3). The cost of expenses as of October 16, 2026 is estimated at $215,818.95. (*Id.*). Based on the plaintiff's quarter ownership of the property, the plaintiff should have paid his portion of expenses that would amount to $53,954.74. (*Id.*). Defendant asserts that the PRPA provides for offsets to allow the purchasing parties to pay only what is owed after offsets and is entitled to credit against the price in an amount equal to the purchaser's share of the proceeds. (*Id.,* at p. 2-3).

Before the Court, is Defendant Ron Estrada's motion to appoint an independent appraiser to determine the fair market value under partition of real property and confirm offsets that was filed on October 22, 2025. The motion was accompanied by a proof of service on that same day indicating electronic service to plaintiff's counsel. The defendant seeks the following orders: (1) an order appointing Bradley Carneghi of Carneghi-Nakasako & Associates as appraiser of the Subject Property. (Motion, at p. 6; Declaration of Brown; Exhibit 7); (2) an order confirming that if the defendant elects to buy all of the plaintiff's 25% interests in the Subject Property, the defendant will be entitled to offsets for maintenance, taxes, and preservation of title through the money judgment and that he will be credited against any sum otherwise payable to the plaintiff. (*Id.,* at p. 3); (3) an order that if the Subject Property is sold, the offset amounts shall be deducted from the plaintiff's share of the sale proceeds and paid to the defendant. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following, moving papers, including Defendant's notice of motion, memorandum of points and authorities in support of a motion, Declaration of Greg Brown in support of the defendant's motion and attached Exhibits 1-10, and proof of service (totaling 69 pages), as well as the pleadings.

II. <u>LEGAL STANDARD</u>

The Uniform Partition of Heirs Property Act former Code of Civil Procedure section 874.311 et seq., governs actions filed on or after January 1, 2022 for the partition of real property that is "heirs property" as defined in the Act. According to Civil Code of Procedure section 874.312, subdivision (e), "heirs property" means real property held in tenancy in common which satisfies all the following requirements as of the filing of a partition action:

(1) There is no agreement binding all the cotenants which governs the partition of the property.
(2) One or more of the cotenants acquired title from a relative, whether living or deceased.
(3) Any of the following applies: 20% or more of the interests are held by cotenants who are relatives; 20% or more of the interests are held by an individual who acquired title from a relative, whether living or deceased; or 20% or more of the cotenants are relatives.

Parties may request the "appoint[ment of] a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate." (Code Civ. Proc. § 874.316(d)).

When partition is ordered, the court may apportion the costs of partition, including an appraisal fee, except that the court cannot apportion the costs of partition to any party that opposes the partition unless doing so is equitable and consistent with the purposes of the Act.

Pursuant to Code of Civil Procedure section 874.316(d), within 10 days after the appraiser files his or her appraisal with the court, the court must send notice to each party with a known address, stating the following:

(1) The appraised fair market value of the property.
(2) That the appraisal is available at the court clerk's office.
(3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection. (Cal. Code Civ. P. § 874.316(d)).

Section 874.316(e)-(f) then states that: If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). After the hearing on the fair market value of the property under section 874.316(f), but before considering the merits of the partition action, the court must determine the property's fair market value and send notice of same to the parties. (Cal. Code Civ. Proc. § 874.316(g)).

Code of Civil Procedure section 872.140 provides in relevant part: "The court may, in all cases, order allowance, accounting, contribution, or other compensatory adjustment among the parties according to the principles of equity." (Code Civ. Proc., § 872.140)."Every partition action includes a final accounting according to the principles of equity for both charges and credits upon each cotenant's interest. Credits include expenditures in excess of the cotenant's fractional share for necessary repairs, improvements that enhance the value of the property, taxes, payments of principal and interest on mortgages, and other liens, insurance for the common benefit, and protection and preservation of title." (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035-1036).

Section 873.220 provides that: "As far as practical, and to the extent it can be done without material injury to the rights of the other parties, the property shall be so divided as to allot to a party any portion that embraces improvements made by that party or that party's predecessor in interest. In such division and allotment, the value of such improvements shall be excluded." (Code Civ. Proc., § 873.220).

III. <u>ANALYSIS</u>

Defendant Ron Estrada asserts that under Coe of Civil Procedure section 874.313(a), PRPA applies to the Subject Property filed on or after January 1, 2023. (Motion, at p. 5). Defendant avers under sections 874.311(b) and 874.313(a) that PRPA applies the Subject Property held in common where there is no agreement in a record binding all the contents which govern the partition of the property. (*Id.*). As to the joint tenancy, the defendant alleges to own 75% interest and the plaintiff to own 25% interest in the Subject Property. (*Id.;* Declaration of Brown). Defendant asserts that there is no recorded agreement governing the partition of the Subject Property. (*Id.*).

Here, there is no agreement in record binding the parties to the Subject Property which governs the partition of the Property. The property is "heirs property" because the October 28, 1987 grant deed shows that the property is titled in the names of William R. Estrada and Jeanne L. Estrada as husband and wife/joint tenants, and parents to Ronald Estrada and Rolan Estrada, their sons, whom they leave title to as follows: Ronald Estrada 75% interest and Rolan Estrada 25% interest. (Declaration of Brown; Exhibit 5 (followed by sub. Exh. 1), at p. 51). Thus, as both parties acquired title from their blood relatives pursuant to section 874.312(i), this prong is satisfied.

A. APPOINTMENT OF APPRAISER

Defendant seeks an order for appointment of a licensed, disinterested appraiser to determine the fair market value of the Subject Property. (Motion, at p.2). The defendant seeks an order appointing Bradley Carneghi of Carneghi-Nakasako & Associates as appraiser of the Subject Property. (Motion, at p. 6; Declaration of Brown; Exhibit 7). Defendant asserts that Bradley Carneghi is a licensed level "AG" Certified General Appraiser, which is the highest level of appraiser licensing. (*Id.*).

Here, Appraiser Bradley Carneghi has no relationship with the parties and is a licensed level AG appraiser. Under section 874.316(d), the Court finds this prong satisfied.

B. OFFSETS

Defendant seeks an order confirming that if the defendant elects to buy all of the plaintiff's 25% interests in the Subject Property, the defendant will be entitled to offsets for maintenance, taxes, and preservation of title through the money judgment and that he will be credited against any sum otherwise payable to the plaintiff. (*Id.,* at p. 3). Defendant estimates having spent approximately $215,747.35 from 1987 through 2025 on property taxes and road maintenance on the subject property. (Declaration of Brown; Exhibit 10). Based on the plaintiff's quarter interest in the Subject Property, the defendant seeks offset in the amount of $53,954.74. Defendant states that the property value and property tax figures were estimated on current values and assumed a tax rate of 1.3% per year. (*Id.,* at p. 14). The estimated annual road maintenance expenses were based on estimated costs of $150.00 per week, annualized, and was then reduced annually by an assumed inflation rate of 2.6% per year. (*Id.*).

Defendant seeks to exercise the right of first refusal. Under the PRPA, "[i]f any cotenant requested partition by sale, the court shall, after the determination of value under Section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale." (Code Civ. Proc. § 874.317(a)). The Court finds that the defendant may buy interests of the plaintiff under section 874.317(b).

The Court calculates that 25% of the $215,747.35 amounts to $53,936.84. The request for offset for maintenance, taxes of the Subject Property, which the Court finds appropriate and satisfied.

C. CREDITS

Defendant seeks an order that if the Subject Property is sold, the offset amounts shall be deducted from the plaintiff's share of the sale proceeds and paid to the defendant. (*Id.*). The defendant acquired a money judgment against the plaintiff. The underlying judgment as of April 3, 2023 was $98,037.70. Per diem interest in the amount of $16.64 is applied and as of October 16, 2025, the judgment amounts to $113,462.98. The defendant states the judgment was acquired to benefit he Subject Property owners, and seeks an offset any amounts owed to Plaintiff in the partition. (Motion, at p. 8). Defendant seeks to determine whether the money judgment that was awarded again the plaintiff and in favor of the defendant may be satisfied in whole or in party as consideration, and to confirm taxes and maintenance costs paid by the defendant as an offset in the defendant's favor. (*Id.*). Defendant seeks to be credited against any buyout or distribution of proceeds from the sale of the Subject Property. (*Id.*). Additionally, Defendant seeks a hearing on the valuation of the Subject Property 60 days from the date of appointment of the appraiser for the hearing on valuation and providing notice to the parties in compliance with Code of Civil Procedure section 874.316 (e)-(f).

The Court DENIES WITHOUT PREJUDICE the request to offset the credits based on the money judgment acquired by the defendant against the plaintiff.

IV.<u>CONCLUSION</u>

Based on the foregoing, and the motion being unopposed, the Court GRANTS and ORDERS the following:

(1) Bradley Carneghi of Carneghi-Nakasako & Associates is appointed as appraiser of the Subject Property;

(2) The Defendant may elect to buy all of the plaintiff's 25% interest of the Subject Property and the defendant will be entitled to offset for maintenance and taxes of the Subject Property for the plaintiff's 25% portion of $53,936.84; and

(3) The offset amount for maintenance and taxes of $53,936.84 shall be deducted for plaintiff's share if the Subject Property is sold.

The Court DENIES without prejudice the defendant's request to credit the money judgment acquired against the plaintiff at this time.

The matter will return on September 29, 2026 at 9:00 a.m. in Department 1 for hearing on valuation and providing notice to the parties of the value. The Court will prepare the formal Order.

Calendar Line # 5
Case Name Itria Ventures LLC et al vs Shivendra Basnet et al
Case No. 24CV448023

Motion for Attorneys' Fees and Costs

I. BACKGROUND

This case stems from a breach of written contract and breach of written guaranty, the Complaint was filed on September 24, 2024. On July 29, 2025, the court granted the Plaintiff Itria Ventures LLC ("Itria")'s motion for summary judgment. On August 27, 2025, there was an entry of judgment in the amount of $408,164.80 in favor of the plaintiff. On September 5, 2025, there a notice of entry of judgment was entered.

On October 22, 2025, Plaintiff Itria Ventures LLC ("Itria") filed this motion for attorney's fees and cost. The motion was accompanied by a proof of service indicating mail and electronic mail service to defense counsel on that same day. The plaintiff seeks a total of $12,141.51 comprised of attorney's fees in the amount of $10,420.00 and costs in the amount of $1,721.51.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following moving papers: notice of plaintiff's motion; memorandum of points and authorities; Declaration of Jason S. Takenouchi in support of the motion and attached Exhibits A-B (totaling 40 pages); proof of service and the pleadings.

II. LEGAL STANDARD

A. TIMELINESS

Pursuant to California Rule of Court 3.1702, a fee motion "must be served and filed within the time for filing a notice of appeal under Rules 8.104 and 8.108 in an unlimited civil case . . . ." (Rule 3.1702(b)(1)). Under Rule 8.104(a)(1), the "deadline ordinarily falls 60 days after notice of entry of judgment, or 180 days after entry of judgment, whichever is first." (*Kaufman v. Diskeeper Corp*. (2014) 229 Cal.App.4th 1, 8). "The language of the rule thus applies only to a motion to recover all prejudgment attorney fees incurred in an action, and contemplates the filing of such a motion at the conclusion of the lawsuit." (*Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 463).

There is a long history of caselaw pointing toward settlements serving as "judgments." (*See DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155 ["As between the parties thereto and for purposes of enforcement of settlement agreements, a compromise agreement contemplating payment by defendant and dismissal of the action by plaintiff is the legal equivalent of a judgment in plaintiff's favor."] italics added, citing (*Goodstein v. Bank of San Pedro* (1994) 27 Cal.App.4th 899, 907 907, italics added; *see also Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385, 399-403)).

B. PREVAILING PARTY

Pursuant to Code of Civil Procedure section 1032(b), "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." "'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032(a)(4)). Costs recoverable under section 1032 are restricted to those that are both reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc., §§ 1033.5(c)(2), (3)). Costs "merely convenient or beneficial" to the preparation of a case are disallowed. (Code Civ. Proc., § 1033.5 (c)(2); see *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (*Ladas*) [expenses for local travel and attorney meals are not reasonably necessary]).

C. REASONABLE ATTORNEY FEES & COST

The attorney fee award should cover "all the hours reasonably spent" by the prevailing party's attorneys. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, italics omitted; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 624, 639). Fees are calculated using the lodestar method, i.e., "the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095-1096). "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623). In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Ibid.*).

In determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys' efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Stokus v. Marsh* (1990) 217 Cal.App.3d 647, 657 (*Stokus*)).

In determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. "Fundamental to its determination . . . [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney . . . in the presentation of the case." (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48 (*Serrano III*)). A reasonable hourly rate must reflect the skill and experience of the attorney. (*Id.* at 49). "*Prevailing parties* are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635 (*Serrano IV*); see also *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587 ("The trial court could make its own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel's declaration unsubstantiated by time records and billing statements.").

Reasonable attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (*PLCM Group, Inc. v. Drexler, supra,* 22 Cal.4th at 1090). The value of legal services performed in a case is a matter in which the trial court has its own expertise. (*Id*. at 1096). The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Ibid*.). The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (*Ibid*.).

III. <u>ANALYSIS</u>

Here, the entry of judgment was entered on August 27, 2025 and the notice of entry of judgment was filed on September 5, 2025. Plaintiff filed this motion on October 22, 2025, which 56 days from the entry of judgment and 47 days from the entry of judgment. Thus, the Court finds the motion as timely.

The Judgment authorized by the Honorable Shella Deen notes that the court granted plaintiff's motion for summary adjudication as to the plaintiff's third through sixth cause of action and noted that the plaintiff dismissed the first and second causes of action in the Complaint without prejudice. (Judgment, at p. 2). The Honorable Deen ordered that judgment be entered for plaintiff Itria against defendants The Everest Momo LLC and Shivendra Bahadur Basnet, an individual, jointly, and severally, in the amount of $408,164.80 plus attorney's fees, interest, and costs. (*Id.*).

Plaintiff seeks $12,141.51 comprised of $10,420 in attorneys' fees and costs $1,721.51. (Motion, at p. 3-5). Plaintiff seeks 38.1 hours of time expended by plaintiff's counsel and staff since March 24, 2025 to the present for reviewing and analyzing client-provided documents, drafting a complaint, coordinating service attempts, drafting a motion for summary judgment, supporting declarations, proposed final judgment, and drafting the motion. (Motion, at p. 3-7). Plaintiff asserts that three separate attorneys: Jason S. Takenouchi, Helen Y. Chang, and Ross G. Shank worked on the matter. (*Id.,* at p. 6). Attorney Takenouchi attests to spending 1.3 hours at $300.00 per hour; Attorney Chang spent 25 hours at the hourly rate of $275.00; and Attorney spent 10.6 hours at the hourly rate of $275.00. Paralegal Jamila A.M. Folkes spent 1.2 hours at an hourly rate of $200.00 on the matter. (*Id.;* Exhibit 1).

Upon review of the requested fees, the Court finds and awards reasonable attorney's fees and reduces the hourly rates as follows: 1.3 at $300 for Attorney Takenouchi; 19.3 hours at the hourly rate of $275.00; and 3.9 hours at the hourly rate of $275.00. Paralegal rates are awarded for a total of 0.7 hours at the hourly rate of $200.00. The total amount awarded is $6,910.00.

Costs are established by a memorandum of costs for filing and motion fees, deposition costs, and electronic filing and serve fees. (Memorandum of Costs). The Court finds the costs reasonable grants costs in the amount of $1,721.51.

No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV.<u>CONCLUSION</u>

Based on the foregoing, the Court GRANTS the plaintiff's request for attorney's fees and costs. Attorneys' fees is awarded in the amount of $6,910.00 and costs are awarded in the amount of $1,721.51 for a total of $8,631.51. The Court will prepare the formal Order.

Calendar Line # 6
Case Name Anson Vasquez vs Tyler Stayskal et al
Case No. 24CV451194

Motion to Compel Responses to Form Interrogatories and Request for Production of Documents, Set One; and Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a motor-vehicle accident that occurred on or around September 15, 2023. On November 7, 2024, Plaintiff Anson Vasquez ("Vasquez") filed a Complaint against Defendants Tyler Stayskal and Michelle Tedford (collectively "Defendants") for motor vehicle accident resulting in personal and property damages, and also sought punitive damages. (Complaint). Defendants filed an Answer on September 30, 2025.

B. RELEVANT PROCEDURAL BACKGROUND

On September 30, 2025, Defendants propounded initial written discovery including form interrogoatires ("FROG"), set one, and Request for Production of Documents ("RFPD"), on Plaintiff Vasquez via electronic mail. (Declaration of Ryan, at p. 2; Exhibit A). Defendants asserts that responses were due on November 4, 2025. (*Id.*). On November 13, 2025, defense counsel sent the plaintiff a meet-and-confer letter setting forth that no responses were served and that if no discovery responses were received within ten days, the defendants would seek a motion to compel and sanctions. (*Id.,*; Exhibit B).

On December 10, 2025, Defendants filed this present motion to compel FROGs and SPROGS, set one, and sanctions. The motion was accompanied by a proof of service indicating electronic service on the plaintiff on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Per the defendants most recent case management statement dated July 10, 2026, in section 16(c), the defendants stated that the defendants are still awaiting discovery responses.

The Court has carefully reviewed the Defendants moving papers including a notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 5 pages); Declaration of Williams Ryan in support of the defendant's moving papers with Exhibits A-B attached (totaling 19 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Purusant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. f a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, §

2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 ("In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172*; see also, Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute." (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

"As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant "is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section." (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

Code of Civil Procedure section 2031.010(d) allows a party to "demand that any other party allow the party making the demand, or someone acting on the demanding party's behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it." Such a demand may be "without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first." (Code Civ. Proc., § 2031.020(b)). "The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action." (Code Civ. Proc., § 2031.040). If no response is served, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300(b)).

III. <u>ANALYSIS</u>

Here, the defendants served the plaintiff with FROG and RFPD on September 30, 2025. Ten months since the initial discovery was pounded, the plaintiff has failed to provide any responses. (Defendant's Motion, p. 2).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. <u>SANCTIONS</u>

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c)).

The Defendants seek a total of $1,200.00 in attorney's fees based on four hours spent on preparation and filing of this present motion and an anticipated 2 hours for reviewing oppositions, preparing a reply brief, and attending the hearing at the hourly rate of $200.00. The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Based on the straightforward nature of the motion, the Court reduces the requested number of hours to three hours at the requested hourly rate. Thus, the request for sanctions in the amount of $1,200 is DENIED. The Court awards the defendants sanctions in the amount of $600.00.

V. <u>CONCLUSION</u>

Based on the foregoing, the Court GRANTS the defendants motion to compel responses to FROG and RFPD, set one. Plaintiff is ORDERED to serve verified responses to FROG and RFPD, set one within 20 days from this hearing date.

Based on the Court's granting the motion to compel and the plaintiff not serving any responses to FROGs ad RFPD for approximately ten months from when they were served, the defendants motion for sanctions against the plaintiff is GRANTED. However, the requested amount of $1,200.00 is DENIED. The Court will award sanctions for attorney's fees and costs in the amount of $600.00. The Plaintiff is ORDERED to pay the defendant $600.00 within 20 days from this hearing date.

The Court will prepare the formal Order.

Calendar Line # 7

Case Name Amy Hunter vs San Jose Motorsport, Inc. et al.

Case No. 25CV474331

Petition to Compel Arbitration

I. <u>BACKGROUND</u>

Plaintiff Amy Hunter ("Plaintiff") was employed by Defendant San Jose Motosport Inc. ("San Jose BMW") in February 2014. (Complaint at ¶ 9). Plaintiff was a Sales Manager and a salaried and commissioned employee. (*Id.* at ¶ 10). Plaintiff alleges that she was discriminated against because of her age. (*Id.* at ¶¶ 12-14). Defendant Willie Hodgson ("Hodgson") hired his sister who is significantly younger the Plaintiff. (*Id.* at ¶ 15). Hodgon's sister was promoted to a position comparable to Plaintiff and many of Plaintiff's duties were transferred to Hodgson's sister despite Plaintiff's years of experience. (*Ibid).*

Plaintiff further alleges she did not receive proper commissions for the sales that she made. (Complaint at ¶¶ 16, 17). Plaintiff made a formal complaint about her commissions, but Hodgson never agreed to discuss the issue. (*Id.* at ¶¶ 18-21). In early 2024, Plaintiff was demoted to Salesperson after she began complaining about her commissions. (*Id.* at ¶ 23).

Plaintiff suffered an emotional breakdown due to the stress she faced at work and sought medical care. (Complaint at ¶ 28). Plaintiff was placed on leave for ten days. (*Ibid).* Plaintiff was diagnosed with stress and anxiety and began seeking mental health treatment. (Complaint at ¶ 30). Plaintiff's employment was terminated on June 27, 2024, while she was on leave. (*Id.* at ¶ 32). Plaintiff believes she was terminated because of her age and complaints about not being paid the proper commissions owed to her. (*Id.* at ¶ 33).

Defendants San Jose BMW and Hodgson (collectively "Defendants") now move to compel arbitration pursuant to two agreements: (1) a Binding Arbitration Agreement executed by Plaintiff on December 18, 2019; and (2) an Employment Agreement executed by Plaintiff on March 22, 2024. The Employment Agreement includes an integration clause that provides "[t]his Agreement is the entire agreement of the Company and Employee." (Petition to Compel Arbitration, Exh. B at ¶ 19). The Employment Agreement further provides "[t]his Agreement supersedes any prior agreement between the Company or any predecessor of the Company and the Employee[.]" (*Id.* at ¶ 14). Since the Employment Agreement is the more recent agreement and contains an integration clause, it supersedes the Binding Arbitration Agreement and controls. Having considered the Employment Agreement (the "Agreement") and the circumstances of its execution, the court will grant the motion to compel arbitration and stay this action.

II. <u>LEGAL STANDARD</u>

A. OBJECTION TO EVIDENCE

Plaintiff objects to the Declaration of Willie Hodgson for lack of personal knowledge, improper lay opinion, speculation, lack of foundation, hearsay, and lack of authentication. The Court OVERRULES these objections. First, the Declaration of Willie Hodgson does not offer any out-of-court statements offered for the truth of the matter asserted. Second, "the custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company's files." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758-759).

Plaintiff also objects to Exhibits A and B attached to the Petition to Compel Arbitration. Exhibit A is the Binding Arbitration Agreement executed December 18, 2019. Exhibit B is the Employment Agreement executed March 22, 2024. Plaintiff objects to these documents for lack of foundation and authentication as well as hearsay. The Declaration of Willie Hodgson provides that these documents are maintained in the normal course and scope of business and thus fall within the business records exception. Additionally, "documents containing operative facts such as words forming an agreement are not hearsay." (*Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 316). The agreements are submitted to prove the existence of an agreement to arbitrate and are not offered for the truth of the underlying assertions contained therein. Nevertheless, "[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166 (*Gamboa*)). All that is required is that the moving party attach the agreement to the motion or set forth its terms. (*Ibid).* As explained below, Defendant has met its burden. For these reasons, the objections to Exhibits A and B are also OVERRULED.

B. FEDERAL ARBITRATION ACT ("FAA")

The Federal Arbitration Act's ("FAA") term "involving commerce" is interpreted broadly. The basic coverage provision of the FAA "makes the law applicable to contracts evidencing a transaction 'involving commerce' (9 U.S.C. § 2), which language reflects that Congress intended the law's coverage to extend to the full reach of its commerce clause power." (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted]). "Congress Commerce Clause power 'may be exercised in individual cases without showing any specific effect upon interstate commerce' if in the aggregate the economic activity in question would represent 'a general practice . . . subject to federal control.'" (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56-57 [quoting *Mandeville Island Farms, Inc. v. American Crystal Sugar Co.* (1948) 334 U.S. 219, 236]).

Defendant San Jose BMW is engaged in interstate commerce. "The Company purchases goods, including, *inter alia*, motorcycle parts and motorcycles from suppliers throughout the United States and abroad, sells its vehicles to customers who reside both in California and in other states, works with its customers to obtain financing with lenders throughout the United States, and services and repairs vehicles of customers who reside both in California and in other states; and who are reasonably expected to operate their vehicles while traveling throughout the United

States." (Declaration of Willie Hodgson at ¶ 4). Based on this description, Defendant San Jose Motor Sport, Inc.'s operations meet the broad definition of interstate commerce. Moreover, "employment contracts, except for those covering workers engaged in transportation, are covered by the FAA." (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289). Therefore, the FAA applies.

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

III. <u>ANALYSIS</u>

A. THERE IS A VALID AGREEMENT TO ARBITRATE THAT COVERS CLAIMS AGAINST SAN JOSE BMW

Defendants have attached a copy of the Employment Agreement to their petition to compel arbitration. (Petition to Compel Arbitration, Exh. B). (*Gamboa, supra,* 72 Cal.App.5th at pp. 165-166 [noting that it is a moving party's burden to produce prima facie evidence of an agreement to arbitrate by attaching the agreement to the motion]). The Employment Agreement is signed by Plaintiff and dated March 22, 2024. Plaintiff does not dispute that she signed the Employment Agreement. (Declaration of Amy Hunter ["Hunter Decl."] at ¶ 6 ["The signature on that document is mine."]). Therefore, the Employment Agreement is a valid agreement to arbitrate.

The Employment Agreement sets forth the requirement for arbitration in paragraph 15 as follows: "Settlement by Arbitration. Any claim or controversy that arises out of or relates to this agreement, or the breach of it, shall be settled by arbitration in accordance with the rules of the American Arbitration Association. Judgment upon the award rendered may be entered in any court with jurisdiction." (Petition to Compel Arbitration, Exh. B at ¶ 15). Plaintiff does not allege breach of the Employment Agreement, but her causes of action are related to it. For example, in addition to discrimination and retaliation, Plaintiff's claims include wrongful termination in violation of public policy, failure to issue accurate and itemized wage statements, and failure to pay wages due upon termination; waiting time penalties. Plaintiff's claims arise out of her employment relationship with San Jose BMW and therefore encompass the scope of the Employment Agreement.

However, the Employment Agreement only covers the claims against San Jose BMW and not Hodgson. "Because arbitration is a matter of contract, the basic rule is that one must be a party to an arbitration agreement to be bound it or invoke it—with limited exceptions." (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 892-893). "Whether an arbitration agreement is binding on a third party (e.g. a nonsignatory) is a question of law subject to de novo review." (*Benaroya v. Willis* (2018) 23 Cal.App.5th 462, 468). "There are circumstances in which nonsignatories to an agreement containing an arbitration clause can be compelled to arbitrate under that agreement. As one authority has stated, there are six theories by which a nonsignatory may be bound to arbitrate '(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third party beneficiary.'" (*Id.* at p. 469 [citing *Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513]).

Unlike the Binding Arbitration Agreement, the Employment Agreement does not expressly apply to the benefit of third parties like Hodgson. Defendants argue Plaintiff must be compelled to arbitrate her claims against Hodgson based on equitable estoppel. (Defendants' Memorandum of Points & Authorities at p. 5:17-28). However, Defendants' argument is directed toward the Binding Arbitration Agreement and not the Employment Agreement. (*Ibid).* The Court, in any event, considers whether the doctrine of equitable estoppel applies to the Employment Agreement. "[T]he *sine qua non* for application of equitable estoppel as the basis for allowing a nonsignatory to enforce an arbitration clause is that the claims the plaintiff asserts against the nonsignatory must be dependent upon, or founded in and inextricably intertwined with the underlying contractual obligations of the agreement containing the arbitration clause." (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 217-218).

In the *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, the car manufacturer moved to compel arbitration of this action pursuant to the sales contract as a non-party. The California Supreme Court denied the petition to compel arbitration because the manufacturer was not a signatory to the sales contract and because the breach of warranty claims under the Song-Beverly Act were "not intimately found in or intertwined with the sales contracts[.]" (*Id.* at p. 1126). Plaintiff asserts only two causes of action against Hodgson: the eleventh cause of action for failure to issue accurate and itemized wage statements; and the twelfth cause of action for failure to pay wages due upon termination; waiting time penalties. Plaintiff brings these causes of action pursuant to Labor Code sections 226(a), and 201-203. These causes of action do not depend on the existence of a written employment agreement and are independently alleged under the statute. These claims relate to the Employment Agreement as to San Jose BMW because it is a party to the Agreement. Hodgson, however, is not a party to the Employment Agreement and these claims are not so intertwined with the Agreement such that Plaintiff's claims against him are dependent upon it. Thus, the scope of the Agreement covers Plaintiff's claims as to San Jose BMW only.

B. THE EMPLOYMENT AGREEMENT IS NOT UNCONSCIONABLE

Plaintiff maintains the Arbitration Agreement is unenforceable because it is both procedurally and substantively unconscionable. The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*)). This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126). Nevertheless, both must be shown. Procedural unconscionability focuses on oppression or surprise to the "weaker" party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra,* 8 Cal.5th at pp. 125-129). The court thus proceeds to consider whether the Agreement is procedurally and substantively unconscionable.

C. PROCEDURAL UNCONSCIONABILITY

The circumstances that the court examines to determine whether there was "oppression" in the signing of an agreement generally include: " '(1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney.'" (*OTO, supra*, 8 Cal.5th at pp. 126-127 [quoting *Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348]).

Plaintiff maintains she was not given an opportunity to negotiate or opt out of the arbitration provision, and that she was not told the agreement contained an arbitration provision in the first place. (Hunter Decl. at ¶¶ 7-10). Plaintiff further maintains she was pressured into signing the Agreement quickly, and that she believed doing so was a precondition to resolving her pay dispute. (*Ibid).* However, Plaintiff concedes that she was able to negotiate a non-compete provision and have it excluded from the Agreement. (Hunter Decl. at ¶ 8). Plaintiff also concedes that the execution of the Agreement took a total of five days. (*Id.* at ¶ 7). To the extent Plaintiff argues the terms were not explained to her, the fact that she chose not to read or take the time to understand these provisions is irrelevant." (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383 (*Harris*). "An arbitration clause within a contract may be binding on a party even if the party never actually read the clause." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236). The general rule is that "one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language." (*Harris, supra,* 248 Cal.App.4th at p. 383).

The Employment Agreement was offered as a condition of employment, and was, therefore, a contract of adhesion. Nevertheless, "the cases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis." (*Lagatree v. Luce* (1999) 74 Cal.App.4th 1105, 1127). This type of contract of adhesion in the employment context adds a modest amount of procedural unconscionability and, the amount of procedural unconscionability is increased when the fact of an adhesion contract is combined with other issues. (See *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248). Given the adhesive nature of the Agreement, the Court concludes there is a modest degree of procedural unconscionability.

D. SUBSTANTIVE UNCONSCIONABILITY

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). The court assesses whether the agreement reallocates risks in an objectively unreasonable or unexpected matter. (*Jones v. Wells Fargo Bank* 112 Cal.App.4th 1527, 1539). "In assessing substantive unconscionability, the paramount consideration is mutuality." (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 241 [internal citation and quotation marks omitted]). Arbitration agreements are substantively unconscionable where they lack a "modicum of bilaterality," "without at least some reasonable justification for such one-sidedness based on 'business realities.'" (*Armendariz, supra*, 24 Cal.4th at p. 117).

Armendariz instructs that there are "five minimum requirements for the lawful arbitration of such rights pursuant to a mandatory employment arbitration agreement. Such an arbitration agreement is lawful if it '(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. Thus, an employee who is made to use arbitration as a condition of employment "effectively may vindicate [his or her] statutory cause of action in the arbitral forum." ' " (*Armendariz, supra*, 24 Cal.4th at p. 102).

The Agreement satisfies these factors. The Agreement provides that arbitration shall be held in accordance with the rules of the American Arbitration Association ("AAA"). (Petition to Compel Arbitration, Exh. B at ¶ 15). Though not attached to the Agreement, "the failure to attach the arbitration rules [is] of 'minor significance to [the courts'] analys[e]s' of procedural unconscionability." (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 691 [noting that there could be no surprise because the AAA rules are available on the Internet] [quoting *Bigler v. Harker School* (2013) 213 Cal.App.4th 727, 737]). With respect to substantive unconscionability, the "absence of express provisions requiring a written arbitration award and allowing discovery does not render the arbitration agreement unconscionable. Rather, those terms are implied as a matter of law as part of the agreement." (*Sanchez v. Western Pizza Enterprises, Inc.* (2009) 172 Cal.App.4th 154, 177). The Second District Court of Appeal in *Roman v. Superior Court* (2009) 172 Cal.App.4th 1462, 1476 noted, "[t]here appears to be no meaningful difference between the scope of discovery approved in *Armendariz* and that authorized by the AAA employment dispute rules[.]" The Court, thus, concludes reference to the AAA rules is sufficient for finding that the arbitration shall provide for a neutral arbitrator, discovery, and a written award. The AAA rules also set forth a fee schedule outlining the costs to be undertaken by each party. "The rules of the American Arbitration Association specified by the clause as governing the resolution of disputes are generally regarded to be neutral and fair." (*Lagatree v. Luce, Forward, Hamilton & Scripps* (1999) 74 Cal.App.4th 1105, 1126-1127). Thus, reference to the AAA rules alone is sufficient for finding the lack of substantive unconscionability. Plaintiff does not, in any event, argue there are any overly harsh or one-sided provisions in the Employment Agreement.

Given the moderate degree of procedural unconscionability and the absence of substantive unconscionability, the Court does not find the Agreement unenforceable. Accordingly, the motion to compel arbitration is GRANTED as to San Jose BMW only. The entirety of this action, including the non-arbitrable claims against Hodgson are STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3).

IV. <u>CONCLUSION</u>

Based on the foregoing, the motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The Court will prepare the formal Order.

Calendar Line # 8
Case Name David Dixon, Jr., Ind. And as SII to the Estate of David Dixon, Sr. et al vs Jason Murray et al.
Case No. 25CV482719

Petition to Compel Arbitration

I. <u>BACKGROUND</u>

Decedent David Dixon Sr. ("Decedent"), was a resident at Defendant Sunnyvale Gardens Post Acute[1] from December 19, 2017 to October 29, 2025. (Complaint at ¶ 24). Decedent had a history of constipation and stool impaction that required caregiver assistance for daily living, including assistance with hygiene, turning, and repositioning. (*Id.* at ¶ 32). Defendants allegedly failed to implement preventative interventions for Decedent, including notifying responsible parties of changes to his condition. (*Ibid).* Decedent suffered from a severe fecal impaction and urinary tract infection resulting in septic shock, which ultimately led to his death. (*Ibid).* Plaintiff David Dixon Jr. ("Plaintiff"), individually and as the successor-in-interest to the estate of Decedent, brings this action for (1) elder abuse/neglect; (2) negligence; (3) violation of patient's rights; (4) wrongful death; and (5) survivorship against Defendant.

Defendants move to compel arbitration of Plaintiff's claims pursuant to an Arbitration Agreement (the "Agreement") purportedly signed by Decedent. Having considered the Agreement and the circumstances of its execution, the court will deny the motion to compel arbitration.

II. <u>LEGAL STANDARD</u>

A. OBJECTIONS TO EVIDENCE

Defendants object to the Declaration of David Dixon. Objection Nos. 1-3 & 5 are OVERULED. Mr. Dixon indicates that he has personal knowledge of the facts set forth in is declaration. He states, "[m]y father and I were very close, and I would visit him at least every week and talk to him by phone 2-3 times per week." (Declaration of David Dixon ["Dixon Decl."] at ¶ 3). His declaration is further based on his experience and knowledge of his father's signature. (*Id.* at ¶ 4). Mr. Dixon offers examples of his father's signature for comparison. Objection No. 4 is SUSTAINED in so far as Mr. Dixon speculates about why Defendants had his father sign the Agreement.

Defendant further objects to the Declaration of Kirsten Fish. The Court OVERRULES these objections. Ms. Fish summarizes and quotes the relevant portions of the Exhibits submitted by Plaintiff. Ms. Fish claims to have personal knowledge of these facts based on her review of the record. Ms. Fish's summary of the Exhibits can be taken to prove their existence as opposed to the truth of the matters asserted therein. Defendants do not object to

[1] Defendants include Sunnyvale Community Healthcare, LLC dba Sunnyvale Gardens Post Acute; Providence Group NH, LLC; PACS Holdings, LLC; PACS Group, Inc.; Providence Group, Inc.; Providence Administrative Consulting Services, Inc.; Jason Murray; Mark Darrell Hancock; and Robert Pierce (collectively "Defendants").

any of the Exhibits submitted alongside Ms. Fish's declaration. The Court does not find the description of these Exhibits improper.

B. FEDERAL ARBITRATION ACT ("FAA")

The Federal Arbitration Act ("FAA") applies. The Agreement provides that it is to be "governed by the Federal Arbitration Act (9 U.S.C. §§ 1-6) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration." (Amended Declaration of Rayleen Lopez ["Lopez Decl."], Exh. B at ¶ 7.2). The Agreement further provides, "[a]s this Agreement relates to the Resident's admission to the Facility, and the Facility, among other things, participates in Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors, the parties agree that the underlying admission to the Facility involves interstate commerce." (*Id.*, Exh. B at ¶ 7.1).

The Federal Arbitration Act's ("FAA") term "involving commerce" is interpreted broadly. The basic coverage provision of the FAA "makes the law applicable to contracts evidencing a transaction 'involving commerce' (9 U.S.C. § 2), which language reflects that Congress intended the law's coverage to extend to the full reach of its commerce clause power." (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted]). "Congress Commerce Clause power 'may be exercised in individual cases without showing any specific effect upon interstate commerce' if in the aggregate the economic activity in question would represent 'a general practice . . . subject to federal control.'" (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56-57 [quoting *Mandeville Island Farms, Inc. v. American Crystal Sugar Co.* (1948) 334 U.S. 219, 236]).

As noted above, Defendants receive funding from Medicare and Medi-Cal. Defendant also "utilized out of state vendors to provide care to its residents. Defendants also provide services to out of state residents and used the U.S. mail, telephone systems and internet connections to conduct business and provide services to its residents." (Lopez Decl. at ¶ 11). These activities meet the broad definition for interstate commerce.

The Agreement notably excludes from application California Code of Civil Procedure section 1281.2 (c) "as the parties mutually desire to have any and all disputes submitted to binding arbitration." (Lopez Decl., Exh. B at ¶ 7.3). Thus, only the FAA applies. Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

III. <u>ANALYSIS</u>

At issue is whether there is a valid agreement to arbitrate between the parties. "The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet is burden by setting forth the agreement's provisions in the motion.' " (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Defendants have attached a copy of the Arbitration Agreement bearing the Decedent's initials. While Defendants have met their initial burden, Plaintiff challenges the authenticity of the signature.

"Where, as here, the respondent challenges the validity of the signature, however, the petitioner must 'establish by a preponderance of the evidence that the signature was authentic.' [Citation.] In such proceedings, 'the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.'" (*Bannister v. Marinidence Oppo, LLC* (2021) 64 Cal.App.5th 541, 544 (*Bannister*) [quoting and citing *Engalla v. Permanente Medical Group, Inc.* (1977) 15 Cal.4th 951, 972]).

In the Amended Declaration of Rayleen Lopez, Ms. Lopez states that she met with Decedent on March 7, 2025 to go over his admissions documents. (Lopez Decl. at ¶ 4). Ms. Lopez claims she assisted Decedent with the Arbitration Agreement by reading the entire document to him, "pausing after each section to make sure that he had no questions about the Arbitration Agreement." (*Id.* at ¶¶ 5, 6). According to Plaintiff's production of the "OneSpan Sign Electronic Evidence Summary" produced by Defendants, the Decedent's signature was placed within three seconds of viewing the document. (Declaration of Kirsten Fish ["Fish Decl."], Exh. 6). This casts doubt as to whether Ms. Lopez in fact explained the Agreement to Decedent. However, " '[n]o law requires that parties dealing at arm's length have a duty to explain to each other the terms of the written contract . . . .'" (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674). Nevertheless, Plaintiff's declaration successfully challenges the authenticity of Decedent's signature.

Plaintiff maintains that due to paralysis, Decedent had not signed anything himself for the last five years of his life. (Dixon Decl. at ¶ 3). "His left hand was completely paralyzed and his right hand shook violently, making him incapable of signing documents. The shaking of his right hand was so bad, he even needed help getting food to his mouth during meals. He stopped writing about 7 years before his death and stopped using a laptop about 5 years before his death." (*Ibid).* Plaintiff also provides a comparison of his father's signature to the initials printed onto the Arbitration Agreement. (Dixon Decl. at ¶ 4, Exh. A). Even if the signatures are dated, Plaintiff maintains he never saw his father sign anything with just his initials, his hand would have been shaky which the initials do not show, and his letter "Ds" are always slanted to the right. (*Ibid).* "When the dispute centers on the authenticity of signatures, '[t]he opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by preponderance of the evidence, the authenticity of the signature.'" (*West v. Solar Mosaic LLC* (2024) 105 Cal.App.5th 985, 992 [quoting *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755] [affirming the trial court's denial of the petition to compel arbitration because the plaintiff was "in his 90's, suffered from dementia, did not use a computer, mobile phone or e-mail, and was unable to answer simple questions . . . without assistance and significant delay]).

Plaintiff also states that his father would not have signed the Agreement on his own because he relied on Plaintiff as his main decision maker to sign any necessary documents for him. (Dixon Decl. at ¶ 5). "Whenever anyone would approach him from the Facility management or the billing office, he would tell them to talk to me and he would immediately let me know what was happening. No one other than me handled medical or legal decisions for my father while he was in the Facility." (*Ibid).* Plaintiff's exhibits show that Defendant frequently consulted Plaintiff on matters concerning the Decedent, including a consent to give vaccines, a wound consult, and a hospital transfer. (Fish Decl., Exh. 4). Even if Decedent did not have a Power of Attorney, these facts show that he still relied on Plaintiff to make important decisions. Plaintiff notes the Agreement was signed one day after Plaintiff had an appointment with the Orthopedic Trauma unit. (Dixon Decl. at ¶ 6). He was alone that day without any family members present. (*Id.* at ¶ 7). Plaintiff maintains he would not have signed or been instructed to sign the Arbitration Agreement on Decedent's behalf. (*Id.* at ¶ 8).

Plaintiff's evidence about his father's paralysis, the character of his signature, and reliance on Plaintiff as the main decision maker casts doubt as to whether the initials placed on the Arbitration Agreement were in fact the act of Decedent. The evidence strongly suggests Decedent lacked the technical facility to place his initials on the Agreement. Plaintiff has submitted evidence that creates a factual dispute as to whether Decedent actually signed the Agreement. Apart from the testimony of Ms. Lopez, which is challenged by Plaintiff's evidence, Defendants have not met their burden by a preponderance of the evidence. Although based on different facts, much like *Bannister, supra,* 64 Cal.App.5th at p. 545, "[t]his is a classic example of a trial court drawing a conclusion from conflicting evidence." With the authenticity of Decedent's signature drawn into question, the Court cannot conclude there is a valid agreement to arbitrate. For these reasons, the motion to compel arbitration is DENIED. The Court need not reach the parties' remaining arguments.

IV.CONCLUSION

Based on the foregoing, the motion to compel arbitration is DENIED.

The Court will prepare the formal Order.

Calendar Line # 9
Case Name Baoxin Ling vs Jieqian Xing et al
Case No. 26CV489684

Motion to Strike

Before the court is plaintiff Baoxin Ling's motion to strike against first amended answer. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Baoxin Ling aka Ivy Ling ("Ling") is a professional baker and dessert chef. (Complaint, ¶7). Defendant Jieqian Xing aka Tiffany Xing ("Xing") approached plaintiff Ling with a proposal of jointly opening and operating a bakery business. (Complaint, ¶8). Plaintiff Ling agreed to participate in the venture by contributing labor, skill, time, and goodwill to the business and further agreed to make a capital contribution and to take the position of minority member and manager of the company that would operate the bakery store known as Topi Cake. (Complaint, ¶11). On August 12, 2024, defendant Xing executed and filed articles of organization for defendant Miro Holdings, LLC ("Miro") dba Topi Cake. (Complaint, ¶12).

A dispute ensued over the management and ownership of defendant Miro as well as plaintiff Ling's employment compensation and working conditions. On March 18, 2026, plaintiff Ling commenced this action against defendants Xing and Miro by filing a complaint asserting the following causes of action:

(1) Retaliation
(2) Wrongful Constructive Termination in Violation of Public Policy
(3) Failure to Pay Minimum Wages
(4) Failure to Pay Overtime Wages
(5) Failure to Provide Meal Periods
(6) Failure to Authorize and Permit Rest Periods
(7) Failure to Provide Accurate Itemized Wage Statements
(8) Waiting Time Penalties for Failure to Pay Final Wages
(9) Failure to Maintain Payroll Records
(10) Misclassification of Employees as Independent Contractors
(11) Unfair Business Practices
(12) Breach of Fiduciary Duty
(13) Conversion
(14) Accounting
(15) Declaratory Relief

On May 4, 2026, defendants Miro and Xing each separately filed an answer to plaintiff Ling's complaint.

On May 28, 2026, defendant Xing filed a first amended answer to plaintiff Ling's complaint.

On May 29, 2026, defendant Miro filed a first amended answer to plaintiff Ling's complaint.

On June 8, 2026, plaintiff Ling filed the motion now before the court, a motion to strike defendant Xing's first amended answer. The docket reflects plaintiff Ling attempted to file a separate demurrer in connection with her motion to strike, but the court clerk rejected plaintiff Ling's demurrer due to the lack of a filing fee. Although defendant Xing has filed opposition to both a demurrer and motion to strike, the only motion now before the court is plaintiff Ling's motion to strike.

II. LEGAL STANDARD

Code of Civil Procedure section 431.30 states, in relevant part:

> (b) The answer to a complaint shall contain:
> (1) The general or specific denial of the material allegations of the complaint controverted by the defendant.
> (2) A statement of any new matter constituting a defense.
>
> (c) Affirmative relief may not be claimed in the answer.

III. ANALYSIS

Initially, plaintiff Ling takes issue with defendant Xing's first amended answer insofar as statements made in defendant Xing's affirmative defenses constitute redundant denials and that statements rely on and, at the same time, contradict the Operating Agreement which is attached to plaintiff Ling's complaint.

In the court's opinion, redundancy is not a basis to strike allegations found in defendant Xing's first amended answer. To the extent defendant Xing takes a different interpretation of the Operating Agreement than plaintiff Ling, the court does not view this to be improper pleading. (See *Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239 (*Aragon*)).[2]

Plaintiff Ling's motion to strike the words, "attorney's fees and," from paragraph 3 of the prayer in defendant Xing's first amended answer is GRANTED as "[a]ffirmative relief may not be claimed in the answer." (Code Civ. Proc., §431.30, subd. (c)). The court will not, however, strike those portions of defendant Xing's first amended answer that plaintiff Ling contends are "disguised cross-claims." Defendant Xing, represented by legal counsel, acts at her own peril in deciding whether to plead affirmative defenses rather than affirmative cross-claims.

Plaintiff Ling's motion to strike the sentence, "Defendant reserves the right to amend, supplement, modify, or withdraw any defense as discovery proceeds," from defendant Xing's first amended answer is GRANTED as irrelevant. (Code Civ. Proc., §436, subd. (a)). Irrelevant matter includes "immaterial allegations." (Code Civ. Proc., §431.10, subd. (c)). "An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense; (2) An allegation that is neither pertinent to nor supported by an

[2] In *Aragon*, the court wrote, "Where an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement. So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as correct plaintiff's allegations as to the meaning of the agreement." (*Aragon*, *supra*, 231 Cal.App.3d at p. 239). "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible. While plaintiff's interpretation of the contract ultimately may prove invalid, it was improper to resolve the issue against her solely on her own pleading. In ruling on a demurrer, the likelihood that the pleader will be able to prove his allegations is not the question." (*Id.*; internal quotations removed).

otherwise sufficient claim or defense; (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Code Civ. Proc., §431.10, subd. (b)).

IV. CONCLUSION

Based on the foregoing, Plaintiff Ling's motion to strike the words, "attorney's fees and," from paragraph 3 of the prayer in defendant Xing's first amended answer is GRANTED. Plaintiff Ling's motion to strike the sentence, "Defendant reserves the right to amend, supplement, modify, or withdraw any defense as discovery proceeds," from defendant Xing's first amended answer is GRANTED. However, Plaintiff Ling's motion to strike defendant Xing's first amended answer is otherwise DENIED. The Court will prepare the formal Order.